

**HIGH COURT OF TRIPURA
AGARTALA**

WP(C) 635 of 2019

Sankar Prasad Datta
S/o Late Sudhir Kr. Datta,
having residence at Ujan Abhoynagar,
Agartala, Tripura – 799005.

Petitioner(s).

Versus

1. Election Commission of India
represented by the Chief Election Commissioner,
having its office in Nirvachan Sadan,
Ashoka Rd, Pandit Pant Marg Area,
Sansad Marg Area, New Delhi, Delhi 110001.
2. Chief Electoral officer, Tripura
Having his office at Old Civil Secretariat,
Akhaura Road, PO Agartala, West Tripura,
Agartala, PIN 799001 Tripura State.
3. Returning Officer,
1, Tripura West Parliamentary Constituency,
Having its office at DM & Collector, West Tripura,
Agartala, PIN 799001, Tripura State.

Respondent(s).

For Petitioner(s)	:	Mr. BR Bhattacharjee, Sr. Adv. Mr. TD Majumdar, Adv. Mr. J Majumdar, Adv. Ms R Pruakayastha, Adv.
For Respondent(s)	:	Mr. SM Chakraborty, Sr. Adv. Mr. S Bhattacharjee, Adv.

HON'BLE MR. JUSTICE ARINDAM LODH

Judgment and Order (Oral)

22.05.2019

By means of filing the instant writ petition, the writ petitioner, Sri Sankar Prasad Datta, who is a contesting candidate from 1-Tripura West Parliamentary Constituency, has prayed for the following reliefs:

"In view of the above submissions, it is most respectfully prayed this Hon'ble Court may graciously be pleased to:

a) Issue a writ in the nature of mandamus, or any other appropriate writ, direction or order directing the respondents no.1-3 to countermand the election conducted to 1-Tripura West Parliamentary Constituency in view of large scale rigging and consequently order for fresh polls in the said constituency;

b) Direct Election Commission of India to arrange adequate security and create a conducive atmosphere for voters to exercise their valuable right of voting without fear, for free and fair elections;

c) Direct the Election Commission of India to look into large scale pre poll violence and violence on the polling date and also post-poll violence, rigging and obstruction of voters from exercising their voting right and take immediate steps for prosecuting the offenders;

d) Pleased to issue any other writ or direction(s) or Order(s) as the Hon'ble Court may deem fit and proper in view of the facts and circumstances of the case and in the interest of justice."

2. The main contention of the writ petitioner is that the respondent-Election Commission of India has failed to discharge its statutory obligations to ensure free and fair poll to the ongoing election process in 1-Tripura West Parliamentary Constituency being notified to hold the 17th Parliamentary elections. It is further stated that the action of the respondent No.3 only accentuated the degrading law and order situation in the constituency. There was no deployment of forces in the booths and adjoining areas to maintain peace and calm. Many anti-social elements and hooligans were seen to be entering the houses of the supporters of the left front and created an atmosphere of terror and fear amongst the people that ultimately resulted in less voter turnout during the elections.

3. Mr. BR Bhattacharjee, learned senior counsel assisted by Mr. TD Majumdar, learned counsel appearing for the writ petitioner has submitted that on the day of election

in many booths web cam machineries though installed but were removed at 4.30 p.m. and many web cams were not operative and there were certain booths where there was not at all any installation of web camera.

4. Mr. Bhattacharjee, learned senior counsel has emphasized on the synopsis at annexure-13 of the writ petition which is reproduced hereinbelow:

"SYNOPSIS

A) Total No. of Polling Stations having less than 9.00 hrs video footage	379 Nos.
B) Total No. of Polling Stations Where poll process vitiated	54 Nos.
Total of A + B above	433 Nos.
(i) Total No. of Polling stations where camera was not installed	20 Nos.
(ii) Total No. of Polling stations where Camera fell down on its own and not reinstalled	15 Nos.
(iii) Total No. of Polling stations where Camera was installed after 6.00 am	6 Nos.
(iv) Total No. of Polling stations where Camera fell down on its own and broken	1 Nos.
(v) Total No. of Polling stations where Camera was removed by the operator before closure of poll	06 Nos.
(vi) Total No. of Polling stations where Camera fell down on its own multiple times	05 Nos.
(vii) Total No. of Polling stations where position of Camera changed by operator	03 Nos.
(viii) Total No. of Polling stations where Camera was covered by cloth	01 Nos.
(ix) Total No. of Polling stations where other irregularities reported	08 Nos.
C) Total No. of Polling Stations where irregularities reported	65 Nos.
D) Total No. of Polling Stations where no abnormalities reported by the Pos and MOs	368 Nos.
Grand Total (C+D)	433 Nos."

5. It is also urged before this Court that many election officials were issued with show cause notices and even suspended and criminal cases were lodged against some of the electoral officers. Inviting my attention to annexure-15 of the writ petition, Mr. Bhattacharjee, learned senior counsel has submitted that the Returning Officer of 1-Tripura West parliamentary constituency was removed from

his duty as Returning Officer because of his failure to remove the irregularities noted here-in-above.

6. That apart, the writ petitioner had submitted representation to the respondent No.1 demanding re-poll of 846 numbers of polling booths but later on it was found that the respondent No.1 issued a notification wherein re-poll was directed to be conducted only for 168 booths.

7. It is on the basis of aforesaid facts that Mr. Bhattacharjee, learned senior counsel for the petitioner has painstakingly argued before this Court that in exercise of its jurisdiction under Article 226 of the Constitution of India and pass a direction to countermand the entire election of 1-Tripura West Parliamentary constituency for the reason that the situation is extra ordinary in nature and calls for interference of this Court. In the interim, the writ petitioner has prayed for a direction upon the respondent No.1 not to declare the result of the election.

8. In reply to the counter affidavit filed by the respondents, the writ petitioner has submitted an affidavit by way of rejoinder wherein it is brought on record that vide communication dated 14.04.2019, the writ petitioner had submitted a representation to the returning officer, 1-Tripura West Parliamentary Constituency claiming web cast footage of some polling stations but till date no such soft copy was furnished to the petitioner.

9. Mr. Bhattacharjee, learned senior counsel has strenuously argued that non-performance of statutory

functions of the respondents strikes at the root of free and fair elections, which is the basic feature of a parliamentary democracy. In order to repose faith of the general public on the democratic pattern of the government, free and fair elections to elect representatives are the cardinal requirement and basic feature of constitution.

10. There is no dispute that the Parliament in its power under Article 327 of the Constitution of India while inserting the provisions as contemplated under Section 58A of Chapter IV of the Representation of the People, Act, 1951 (for short, "RP Act") has vested the Election Commission of India with an extra ordinary power to countermand the entire election of a constituency, in appropriate cases, where large scale booth capturing, rigging or other mal practices have taken place.

11. Section 58A of the RP Act is reproduced here-in-below, for convenience:

"58A. Adjournment of poll or countermanding of election on the ground of booth capturing.— (1) If at any election,—

(a) booth capturing has taken place at a polling station or at a place fixed for the poll (hereafter in this section referred to as a place) in such a manner that the result of the poll at that polling station or place cannot be ascertained; or

(b) booth capturing takes place in any place for counting of votes in such a manner that the result of the counting at that place cannot be ascertained,

the returning officer shall forthwith report the matter to the Election Commission.

(2) The Election Commission shall, on the receipt of a report from the returning officer under sub-section (1) and after taking all material circumstances into account, either,—

(a) declare that the poll at that polling station or place be void, appoint a day, and fix the hours, for taking fresh poll at that polling station or place and notify the date so appointed and hours so fixed in such manner as it may deem fit; or

(b) if satisfied that in view of the large number of polling stations or places involved in booth capturing the result of the election is likely to be affected, or that booth capturing had affected counting of votes in such a manner as to affect that result of the election, countermand the election in that constituency."

12. From the aforesaid provision, it is obvious that if the Election Commission is satisfied that large number of polling stations were involved in booth capturing or rigging and result of such events can affect the counting of votes and result of election, it can either declare the poll of such station void and appoint a day and fix the hours for taking fresh poll and in appropriate cases countermand the entire election of the constituency fixing a fresh date and hour for re-poll.

13. Learned senior counsel for the petitioner has candidly submitted that on the basis of the report, as is evinced from Annexure-13 to the writ petition, it is apparent that there were many polling stations having less than nine hours video footage. It is the submission of the learned senior counsel that due to non-operation or proper functioning of the web cameras in some of the booths, it should be presumed that serious malpractices and booth capturing had occasioned.

14. Placing reliance on the report/statement of the presiding offices and electoral officers dated 23.04.2019, the learned senior counsel for the petitioner has submitted that the Election Commission had failed to discharge its constitutional and statutory obligations vested upon it.

However, the learned senior counsel appearing for the petitioner refrained from accusing anyone of such alleged malpractices.

15. It is well known that Article 324 of the Constitution deals with the affairs of 'election'. The provision of Representation of People Act, especially Section 58A has vested the Election Commission with the power of superintendence and control over such election regarding conduct of election. Therefore, if the commission is of the view that having regard to the disturbed condition of the Constituency or part thereof, free and fair election could not be conducted, then he can order re-poll against those polling booths in the said constituency or part thereof.

16. A specific query was made to the learned senior counsel as to how a direction could be passed upon the Commission-respondents not to declare the result of the election in absence of other contesting candidates. The learned senior counsel has simply submitted that he has no grievance against anyone.

17. Declaration of the result of election is a part of the election process and if the declaration of result is stalled by this Court, then, it would definitely affect the candidates of other political parties or even the independent candidates.

18. Here, I may gainfully refer the authoritarian case of ***Mohinder Singh Gill and Anr. vs Chief Election Commissioner, New Delhi & Ors.***, reported in **(1978) 1 SCC 405** it is stated :

"26. the word "election" bears this wide meaning whenever we talk of elections in a democratic country, is borne out by the fact that in most of the books on the subject and in several cases dealing with the matter, one of the question mooted, is when the election begins?

The rainbow of operations, covered by the compendious expression 'election', thus commences from the initial notification and culminates in the declaration of the return of a candidate....."

19. This Court put a specific question to the learned senior counsel that other contesting parties or their candidates must have something to say in respect to the instant writ petition, but, learned senior counsel has answered in course of his deliberations that there is nothing to implead any of such candidates.

20. At this juncture, I can take note of the doctrine of *audi alteram partem*. The basic principle lies that no party should be condemned unheard. If this Court stalls the election process, then, it would definitely and obviously affect the interest of those candidates who are in the fray from 1-Tripura West Parliamentary Constituency for the reason that such order would be passed without hearing them and behind their back, which I should refrain of.

21. The Election Commission has filed the counter affidavit and in the counter affidavit they have questioned the maintainability of the writ petition.

22. Mr. SM Chakraborty, learned senior counsel assisted by Ms B Chakraborty, learned counsel appearing for the Commissioner, Election Commission has submitted that

in no manner, the election process can be stopped in view of the principles enunciated by the Supreme Court.

23. The writ petitioner has failed to submit any material facts that non-operation of the web cam machineries resulted in large scale booth capturing and rigging. The writ petitioner neither in his pleadings nor in course of hearing of this petition, even was not ready to divulge as to who were the persons, who captured booths and took part in rigging.

24. Here, in my considered view, a serious gap is found in introducing the material facts on record to substantiate the allegations. Further, the allegations as advanced by the learned senior counsel appearing for the petitioner appeared to be vague and not specific. Here, it would be apposite to refer to a decision of the Apex Court in ***Bharat Singh & Ors. Vs. State of Haryana & Ors.***, reported in **(1988) 4 SCC 534**, where their Lordships in para 13 have held thus:

"13. As has been already noticed, although the point as to profiteering by the State was pleaded in the writ petitions before the High Court as an abstract point of law, there was no reference to any material in support thereof nor was the point argued at the hearing of the writ petitions. Before us also, no particulars and no facts have been given in the special leave petitions or in the writ petitions or in any affidavit, but the point has been sought to be substantiated at the time of hearing by referring to certain facts stated in the said application by HSIDC. In our opinion, when a point which is ostensibly a point of law is required to be substantiated by facts, the party raising the point, if he is the writ petitioner, must plead and prove such facts by evidence which must appear from the writ petition and if he is the respondent, from the counter-affidavit. If the facts are not pleaded or the evidence in support of such facts is not annexed to the writ petition or to the counter-affidavit, as the case may be, the court will not

entertain the point. In this context, it will not be out of place to point out that in this regard there is a distinction between a pleading under the Code of Civil Procedure and a writ petition or a counter-affidavit. While in a pleading, that is, a plaint or a written statement, the facts and not evidence are required to be pleaded, in a writ petition or in the counter-affidavit not only the facts but also the evidence in proof of such facts have to be pleaded and annexed to it. So, the point that has been raised before us by the appellants is not entertainable. But, in spite of that, we have entertained it to show that it is devoid of any merit."

25. I have perused the pleadings made in the writ petition wherein they have averred that the report dated 23.04.2019 manifests that the entire poll process was vitiated in different polling booths under eight assembly segments due to large scale booth capturing and rigging in those polling stations.

26. In course of hearing, emphasis was laid mainly on the report dated 23.04.2019 submitted by the presiding officers and the micro observers (Annexure-13 to the writ petition) and the relevant page identified by the learned senior counsel appearing for the petitioners is at page 59, i.e. the "Synopsis", as afore-stated.

27. This Court made a specific query as to what were the material facts to support his allegations of booth capturing and rigging based on which the petitioner could ask for invoking the extra ordinary jurisdiction of this Court. Learned senior counsel appearing for the petitioner plainly replied that they did not furnish any other material facts other than the documents they annexed with the writ petition and their entire claim to countermand the election

was based on the documents which were prepared by the respondent-Election Commission.

28. I have given my anxious thoughts to the report dated 23.04.2019 and other enclosures annexed with the writ petition. In the said report dated 23.04.2019, I find that there is only mention of 379 numbers of polling stations where the video footage was found to have functioned for less than 9 hours. In 65 booths it was found that at some stations camera was installed after 6 a.m. on the polling day and in some polling station the operator removed the camera before closure of poll and in some cases the cameras fell down on their own and broke down. In one polling booth, it was found that the camera was covered by cloth. In 54 polling stations, according to the said report, the poll process was vitiated.

29. On the basis of the said findings of the Commission-respondents, the learned senior counsel appearing for the petitioner had urged that the Court should assume that due to the above-noted irregularities the entire poll process in the 1-Tripura West Parliamentary Constituency should be countermanded. Further, it was urged that suspension of some presiding officers also indicate the irregularities in the poll process. Based on these aforesaid facts, Mr. Bhattacharjee, learned Senior counsel for the petitioner painstakingly argued that on the basis of the facts as indicated in the reports of the election officers, the

petitioner claimed re-poll in 846 polling stations as reflected in their representation dated 07.05.2019 addressed to the Chief Electoral Officer, Tripura, Agartala (Annexure 14 & 16 to the writ petition).

30. On the other hand, Mr. SM Chakraborty, learned senior counsel appearing for the respondents has, by way of filing counter affidavit, categorically denied the allegations leveled by the petitioner against the respondents. Mr. Chakraborty, learned senior counsel has argued that the office of the respondent No.2 & 3 had from time to time sensitized the proper mobilization/utilization of the forces through video conferences/meeting, and supplemented the utilization of forces by supplying different formats to the said police forces.

31. In regard to the engagement letter of eight different photographers of BMS, learned senior counsel has submitted that the Commission respondents later on found out that the acronym for Bengali Movie Society was BMS. After the same being detected, the ARO was replaced at the appropriate time and inquiry was also ordered.

32. According to the respondents all necessary steps were taken by way of deployment of forces in the polling booths and adjoining areas to maintain law and order and to ensure free and fare elections.

33. Mr. Chakraborty, learned Senior counsel had, however, submitted that the respondents had meticulously scrutinized the reports submitted by polling officers and having found materials, directed fresh poll in 168 polling stations which was conducted on 12.05.2019. It was strenuously argued by Mr. Chakraborty, learned senior counsel that respondent-Commission had taken stock of the entire list of 846 polling stations submitted by the petitioner. However, having considered all aspects and relevant material facts it had recommended re-poll in 168 polling booths.

34. In furtherance thereof, learned senior counsel has submitted that there was no reasonable justification to recommend fresh poll in the other polling stations as there were no "material facts" for the aforesaid action.

35. The legal issue that arises for consideration before this court in the present petition is, inter alia, about the scope and limitation of the High Court in interfering with the process of election invoking its plenary jurisdiction under Article 226 of the Constitution of India.

36. Before entering into the merits of the rival claims on facts, I may re-visit the legal position in this regard within the framework of our Constitution.

37. Part XV of the Constitution deals with "elections". Article 324 speaks about superintendents, direction and control of elections which are to be vested in the Election

Commission. In ***Union of India vs Association for Democratic Reforms and Anr.***, reported in **(2002) 5 SCC 294** noting the parameters of the jurisdiction of the Election Commission, the Apex Court held;

"46. To sum up the legal and constitutional position which emerges from the aforesaid discussion, it can be stated that : -

1. The jurisdiction of the Election Commission is wide enough to include all powers necessary for smooth conduct of elections and the word 'elections' is used in a wide sense to include the entire process of election which consists of several stages and embraces many steps.

2. The limitation on plenary character of power is when the Parliament or state Legislature has made a valid law relating to or in connection with elections, the Commission is required to act in conformity with the said provisions. In case where law is silent, Article 324 is a reservoir of power to act for the avowed purpose of having free and fair election. Constitution has taken care of leaving scope for exercise of residuary power by the Commission in its own right as a creature of the Constitution in the infinite variety of situations that may emerge from time to time in a large democracy, as every contingency could not be foreseen or anticipated by the enacted laws or the rules. By issuing necessary directions, commission can fill the vacuum till there is legislation on the subject. In *Kanhiya Lal Omar's* case, the Court construed the expressions "superintendence, direction and control" in Article 324(1) and held that a direction may mean an order issued to a particular individual or a precept which may have to follow and it may be a specific or a general order and such phrase should be construed liberally empowering the Election Commission to issue such orders.

3. The word "elections" includes the entire process of election which consists of several stages and it embraces many steps, some of which may have an important bearing on the process of choosing a candidate. Fair election contemplates disclosure by the candidate of his past including the assets held by him so as to give a proper choice to the candidate according to his thinking and opinion. As stated earlier, in *Common Cause* case, the Court dealt with a contention that elections in the country are fought with the help of money power which is gathered from black sources and once elected to power, it becomes easy to collect tons of black money, which is used for retaining power and for re-election. If on affidavit a candidate is required to disclose the assets held by him at the time of election, the voter can decide whether he could be re-elected even in case where he has collected tons of money.

Presuming, as contended by the learned senior counsel Mr. Ashwini Kumar, that this condition may not be much effective for breaking a vicious circle which has polluted the basic democracy in the country as the amount would be unaccounted. May be true, still this would have its own effect as a step-in-aid and voters may not elect lawbreakers as law-makers and some flowers of democracy may blossom.

4. To maintain the purity of elections and in particular to bring transparency in the process of election, the Commission can ask the candidates about the expenditure incurred by the political parties and this transparency in the process of election would include transparency of a candidate who seeks election or re-election. In a democracy, the electoral process has a strategic role. The little man of this country would have basic elementary right to know full particulars of a candidate who is to represent him in Parliament where laws to bind his liberty and property may be enacted.

5. The right to get information in democracy is recognised all throughout and it is natural right flowing from the concept of democracy. At this stage, we would refer to Article 19(1) and (2) of the International Covenant of Civil and Political Rights which is as under : -

"(1) Everyone shall have the right to hold opinions without interference.

(2) Everyone shall have the right to freedom of expression; this right shall include freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice."

6. On cumulative reading of plethora of decisions of this Court as referred to, it is clear that if the field meant for Legislature and Executive is left unoccupied detrimental to the public interest, this Court would have ample jurisdiction under Article 32 read with Articles 141 and 142 of the Constitution to issue necessary directions to the Executive to subserve public interest.

7. Under our Constitution, Article 19(1)(a) provides for freedom of speech and expression. Voters' speech or expression in case of election would include casting of votes, that is to say, voter speaks out or expresses by casting vote. For this purpose, information about the candidate to be selected is must. Voter's (little man- citizen's) right to know antecedents including criminal past of his candidate contesting election for MP or MLA is much more fundamental and basic for survival of democracy. The little man may think over before making his choice of electing law-breakers as law-makers."

38. In *Mohinder Singh Gill and Anr. vs Chief Election Commissioner, New Delhi & Ors.*, reported in

(1978) 1 SCC 405 the Apex Court condensed the statement of law under Article 324 of the Constitution of India as under:

"93. In sum, a pragmatic modus vivendi between the Commission's paramount constitutional responsibility vis a vis elections and the rule of law vibrant with fair acting by every authority and remedy for every right breached, is reached."

39. Thus, Article 324 of the Constitution of India is the repository of law enabling the Election Commission to perform its duties and functions for a free and fair election, which is the basic feature of the Constitution.

40. In **Election Commission of India vs State of Haryana**, reported in **(1984) SUPPL SCC 104** the Apex Court held that *though the Government undoubtedly is in the best position to assess the law and order situation in the area but the ultimate decision whether it was possible expedient to hold the election at any given point of time must rest with the Election Commission.*

41. In the case in hand, the petitioner has raised the law and order problem not conducive to hold free and fair election and sought for interference of this court. In my opinion, in view of the legal position as settled, this Court cannot pass any direction under Article 226 of the Constitution of India since the matter is totally vested upon the Election Commission. As in the instant case, the respondent-Commission after taking all possible measures to ensure free and fair election had conducted the election and

even the re-poll in 168 booths was ordered to be held on 12.05.2019 after considering all relevant material proof and other relevant facts, it would be improper for this court to jump upon the authority of the respondent Commission, which, according to me, only would have the effect of interrupting, obstructing or protracting and delaying the smooth completion of election as scheduled.

42. Learned senior counsel appearing for the petitioner has relied upon a decision of the Madras High Court in ***All India Anna Dravida Munnetra Kazagham vs. State Election Commissioner and Ors.*** reported in ***MANU/TN/7110/2007***. In the said case, the dispute was relating to serious irregularities during polling of 155 ward Commission of Chennai Municipal Corporation alleging that the polling booths in all the said 155 wards were captured by AIADMK party activists. In this case, one of the two Hon'ble Judges (SJ Mokhopaddhay, J.) has dismissed the petition filed under Article 226 of the Constitution of India in the manner as follows:

"80. This apart, there being a forum prescribed under Rule 118 of Rules, 2006 and in view of bar imposed under Article 243ZG of the Constitution and the decisions rendered by the Supreme Court in different cases as referred to above, it is not possible for this Court, under Article 226, to give any finding on merit as to whether election of one or other or all municipal councilors of Chennai Municipal Corporation held on 13.10.06 were free and fair and thereby they are void and invalid. The writ petitions are accordingly dismissed. Consequently, connected miscellaneous petitions are also dismissed. However, in the facts and circumstances, there shall be no order as to costs."

43. Taking a different view the second learned Judge of the Division Bench (FMI Kalifulla J) has passed the following direction:

"176. In the light of my conclusions as above, since the Elections held to the 99 Wards has been found to be vitiated, the first respondent-Election Commission is directed to recall the certificates issued to such of those persons in the 99 Wards pursuant to the interim order of this Court dated 18.10.2006. consequently, the first respondent-election Commission is directed to hold the Elections afresh to all the above 99 Wards by strictly adhering to the norms and by providing adequate Police protection in order to enable the voters to cast their vote freely without any interference from any quarters to enable them to cast their vote in a free and fair election."

44. The said case (supra) relied upon by the learned senior counsel for the petitioner where two Hon'ble Judges had taken two divergent views. So, it is difficult for me to place reliance on the said decision as arrived at by one of the two learned Judges. A query was made to the learned senior counsel for the petitioner whether any appeal by any of the parties to the lis was filed before the appropriate bench or not, but no proper reply was given by the learned senior counsel for the petitioner.

45. It leads me again to look at the scope and ambit of the High court to exercise its power under Article 226 of the Constitution of India in view of Articles 324, 327, 328 and 329 of the Constitution of India, which are vividly discussed in **Mohinder Singh Gill** (supra). The relevant portion is reproduced herein:

"107. What is the scope and ambit of Art. 324 of Constitution? The Constitution of our

country ushered in a Democratic Republic for the free people of India. The founders of the Constitution took solemn care to devote a special chapter to Elections niched safely in Part XV of the Constitution. Originally there were only six articles in this Part opening with Art. 324. The penultimate Article in the chapter, as it stands, is Art. 329 which puts a ban on interference by courts in electoral matter. We are not concerned in this appeal with the newly added Art. 329A which is the last Article to close the chapter.

108. Elections supply the vis viva to a democracy. It was, therefore, deliberately and advisedly thought to be of a paramount importance that the high and independent office of the Election Commission should be created under the Constitution to be in complete charge of the entire electoral process commencing with the issue of the notification by the President to the final declaration of the result. We are not concerned with the other duties of the Election Commission in this appeal.

109. Article 324 came to the notice of this Court for the first time in *N. P. Ponnuswami v. Returning Officer Namakkal Constituency*, 1952 SCR 218 : (AIR 1952 SC 64). This Court observed:

"Broadly speaking, before an election machinery can be brought into operation, there are three requisites which require to be attended to, namely, (1) there should be a set of laws and rules making provisions with respect to all matters relating to, or in connection with, elections, and it should be decided as to how these laws and rules are to be made; (2) there should be an executive charged with the duty of securing the due conduct of elections; and (3) there should be a judicial tribunal to deal with disputes arising out of or in connection with elections. Articles 327 and 328 deal with the first of these requisites, Art. 324 with the second and Art. 329 with the third requisite."

Further below this Court observed as follows:-

"Obviously, the Act is a self-contained enactment so far as elections are concerned, which means that whenever we have to ascertain the true position in regard to any matter connected with election, we have only to look at the Act and the rules made thereunder."

Lower down this Court further observed:

"It is now well recognised that where a right or liability is created by a statute which gives a special remedy for enforcing it, the remedy provided by that statute only must be availed of."

x x x x x

".....It will be a fair inference from the provisions of the Representation of the People Act to state that the Act provides for only one remedy, that remedy being by an election petition to be presented after the election is over, and there is no remedy provided at any intermediate stage."

110. Ponnuswami's case (supra) had to deal with a matter arising out of rejection of a nomination paper which was the subject-matter of a writ application under Art. 226 of the Constitution which the High Court had dismissed.

111. With regard to the construction of Art. 329 (b) it was held that "the more reasonable view seems to be that Art. 329 covers all 'electoral matters'". This Court put forth its conclusion in that decision as follows:-

"(1) Having regard to the important functions which the legislatures have to perform in democratic countries, it has always been recognised to be a matter of first importance that elections should be concluded as early as possible according to time schedule and all controversial matters and all disputes arising out of elections should be postponed till after the elections are over, so that the election proceedings may not be unduly retarded or protracted.

(2) In conformity with this principle, the scheme of the election law in this country as well as in England is that no significance should be attached to anything which does not affect the 'election'; and if any irregularities are committed while it is in progress and they belong to the category or class which, under the law by which elections are governed, would have the effect of vitiating the 'election' and enable the person affected to call it in question, they should be brought up before a special tribunal by means of an election petition and not be made the subject of a dispute before any court while the election is in progress."

This Court also explained the connotation of the word "election" in very wide terms as follows:-

"It seems to me that the word 'election' has been used in Part XV of the Constitution in the wide sense, that is to say, to connote the entire procedure to be gone through to return a candidate to the legislature. The use of the expression 'conduct of elections' in Art. 324 specifically points to the wide meaning, and that meaning can also be read consistently into the other provisions which occur in Part XV including Art. 329 (b)."

This Court further observed that-

".....it (is) clear that the word 'election' can be and has been appropriately used with reference to the entire process which consists of several stages and embraces many steps, some of which may have an important bearing on the result of the process.

x x x x x

If the grounds on which an election can be called in question could be raised at an earlier stage and errors, if any, are rectified, there will be no meaning in enacting a provision like Art. 329 (b) and in setting up a special tribunal. Any other meaning ascribed to the words used in the article would lead to anomalies, which the

Constitution could not have contemplated, one of them being that conflicting views may be expressed by the High Court at the pre-polling stage and by the election tribunal, which is to be an independent body, at the stage when the matter is brought up before it."

The above decision is locus classicus on the subject and the parties before us seek to derive support from it for their contentions.

112. The important question that arises for consideration is as to the amplitude of powers and the width of the functions which the Election Commission may exercise under Art. 324 of the Constitution. According to Mr. Rao, appearing on behalf of the appellants, there is no question of exercising any power under Art. 324 of the Constitution which, in terms, refers to "functions" under sub-art. (6). We are, however, unable to accept this submission since functions include powers as well as duties (see Stroud's Judicial Dictionary, p. 1196). It is incomprehensible that a person or body can discharge any functions without exercising powers. Powers and duties are integrated with function.

113. Article 324 (1) vests in the Election Commission the superintendence, direction and control of the preparation of the electoral rolls for, and the conduct of, all elections to Parliament and to the Legislature of every State and of elections to the offices of the President and Vice President held under the Constitution. Article 324 (1) is thus couched in wide terms. Power in any democratic set up, as is the pattern of our polity, is to be exercised in accordance with law. That is why Arts. 327 and 328 provide for making of provisions with respect to all matters relating to or in connection with elections for the Union Legislatures and for the State Legislatures respectively. When appropriate laws are made under Art. 327 by Parliament as well as under Article 328 by the State Legislatures, the Commission has to act in conformity with those laws and the other legal provisions made thereunder. Even so, both Arts. 327 and 328 are "subject to the provisions" of the Constitution which include Art. 324 and Art. 329. Since the conduct of all elections to the various legislative bodies and to the offices of the President and the Vice-President is vested under Article 324 (1) in the Election Commission, the framers of the Constitution took care to leaving scope for exercise of residuary power by the Commission in its own right, as a creature of the Constitution, in the infinite variety of situations that may emerge from time to time in such a large democracy as ours. Every contingency could not be foreseen, or anticipated with precision. That is why there is no hedging in Article 324. The Commission may be required to cope with some situation which may not be provided for in the enacted laws and the rules. That seems to be the *raison d'être* for the opening clause in Articles 327 and 328 which leaves the exercise of powers under Article 324 operative and effective when it is reasonably called for in a vacuous area. There is, however, no doubt whatsoever that the Election Commission

will have to conform to the existing laws and rules in exercising its powers and performing its manifold duties for the conduct of free and fair elections. The Election Commission is a high-powered and independent body which is irremovable from office except in accordance with the provisions of the Constitution relating to the removal of Judges of the Supreme Court and is intended by the framers of the Constitution to be kept completely free from any pulls and pressures that may be brought through political influence in a democracy run on party system. One the appointment is made by the President, the Election Commission remains insulated from extraneous influences, and that cannot be achieved unless it has an amplitude of powers in the conduct of elections of course in accordance with the existing laws. But where these are absent, and yet a situation has to be tackled, the Chief Election Commissioner has not to fold his hands and pray to God for divine inspiration to enable him to exercise his functions and to perform his duties or to look to any external authority for the grant of powers to deal with the situation. He must lawfully exercise his power independently, in all matters relating to the conduct of elections, and see that the election process is completed properly, in a free and fair manner.

"An express statutory grant of power or the imposition of a definite duty carries with it by implication, in the absence of a limitation, authority to employ all the means that are usually employed and that are necessary to the exercise of the power or the performance of the duty.....That which is clearly implied is as much a part of a law as that which is expressed."

114. The Chief Election Commissioner has thus to pass appropriate orders on receipt of reports from the returning officer with regard to any situation arising in the course of an election and power cannot be denied to him to pass appropriate orders. Moreover, the power has to be exercised with promptitude. Whether an order passed is wrong, arbitrary or is otherwise invalid, relates to the mode of exercising the power and does not touch upon the existence of the power in him if it is there either under the Act or the rules made in that behalf, or under Article 324 (1).

115. Apart from the several functions envisaged by the two Acts and the rules made thereunder, where the Election Commission is required to make necessary orders or directions, are there any other functions of the Commission? Even if the answer to the question may be found elsewhere, reference may be made to S. 19A of the Act which, in terms, refers to functions not only under the Representation of the People Act, 1950 and the Representation of the People Act, 1951, or under the rules made thereunder, but also under the Constitution. The Commission is, therefore, entitled to exercise certain powers under Art. 324 itself on its own right, in an area not covered by the Acts and the rules. Whether the power is exercised in an arbitrary or

capricious manner is a completely different question.”

46. In ***Mohinder Singh Gill*** (supra) all the five Hon’ble Judges after being considered the ratio laid down in ***N.P. Ponnuswami V. Returning Officer (AIR 1952 SC 64)*** and ***Hari Vishnu Kamath vs. Syed Ahmed Ishaque and Ors.***, reported in ***AIR 1955 SC 233*** have held at para 126 as follows:

“127. In view of our conclusion that the High Court had no jurisdiction to entertain the writ application under Art. 226 of the Constitution, it will not be correct for us, in an appeal against the order of the High Court in that proceeding, to enter into any other controversy, on the merits, either on law or on facts, and to pronounce finally on the same. The pre-eminent position conferred by the Constitution on this Court under Article 141 of the Constitution does not envisage that this Court should lay down the law, in an appeal like this, on any matter which is required to be decided by the election court on a full trial of the election petition, without the benefit of the opinion of the Punjab and Haryana High Court which has the exclusive jurisdiction under Sec. 80A of the Act to try the election petition. Moreover, a statutory right to appeal to this Court has been provided under S. 116A, on any question, whether of law or fact, from every order made by the High Court in the dispute.”

47. For the sake of convenience, some observations made by the Apex Court in ***West Bengal State Election Commission and Others Vs. Communist Party of India (Marxist) and Others, AIR 2018 SC 3964*** (supra) may be recapitulated:

“29..... The electoral process is afforded sanctity in a democracy. That is the reason why in a consistent line of precedent, this Court has insisted upon the discipline of the law being followed so that any challenge to the validity of an election has to be addressed by adopting the remedy of an election petition provided under the governing statute. A general assumption of this nature cannot be made. Ultimately

whether this is correct would depend upon the evidence adduced in the facts of individual cases where such a grievance has been made in an election petition. We are emphatically of the view that any challenge to the election must take place in a manner which is known to law."

48. Keeping in mind the aforesaid legal position, if I try to juxtapose the facts of the instant case, then, it is found that the learned counsel for the petitioner have tried to persuade this Court to interfere with the decision of the respondent-Election Commission on the basis of assumption to be drawn from the report dated 23.04.2019 (Annexure-13 of the writ petition) submitted by the presiding officers and micro observers. I have noticed that in the said report there is not a single finding that any of the polling stations was captured or there was "rigging". Further, the learned counsel for the petitioner has raised disputed question of facts relating to conduct of elections, which, according to me, keeping in view the aforesaid legal position as decided by the superior court, is impermissible. The remedy to resolve all those questions lie with the appropriate forum by way of an election petition as provided under the governing statute.

49. In my firm considered view, applying the principle delineated in the case of **Bharat Singh & Ors.** (supra) the petitioner has to produce the concrete supporting evidence in regard to the fact that non-operation of web-camera in certain booths, and defective setting up of camera in some of the polling stations had vitiated the entire election process in those booths.

50. Learned senior counsel for the petitioner has relied upon a decision of the Apex Court in ***Election Commission of India through Secretary Vs. Ashok Kumar & Ors.***, reported in **(2000) 8 SCC 216** where after analysis of the various earlier decisions, the Apex Court has clarified and summarized the law in this regard as follows:

"32. For convenience sake we would now generally sum up our conclusions by partly restating what the two Constitution Benches have already said and then adding by clarifying what follows therefrom in view of the analysis made by us hereinabove :-

1) If an election, (the term 'election' being widely interpreted so as to include all steps and entire proceedings commencing from the date of notification of election till the date of declaration of result) is to be called in question and which questioning may have the effect of interrupting, obstructing or protracting the election proceedings in any manner, the invoking of judicial remedy has to be postponed till after the completing of proceedings in elections.

2) Any decision sought and rendered will not amount to "calling in question an election" if it subserves the progress of the election and facilitates the completion of the election. Anything done towards completing or in furtherance of the election proceedings cannot be described as questioning the election.

3) Subject to the above, the action taken or orders issued by Election Commission are open to judicial review on the well-settled parameters which enable judicial review of decisions of statutory bodies such as on a case of mala fide or arbitrary exercise of power being made out or the statutory body being shown to have acted in breach of law.

4) Without interrupting, obstructing or delaying the progress of the election proceedings, judicial intervention is available if assistance of the Court has been sought for merely to correct or smoothen the progress of the election proceedings, to remove the obstacles therein, or to preserve a vital piece of evidence if the same would be lost or destroyed or rendered irretrievable by the time the results are declared and stage is set for invoking the jurisdiction of the Court.

5) The Court must be very circumspect and act with caution while entertaining any election dispute though not hit by the bar of Article 329(b) but brought to it during the pendency of election proceedings. The Court

must guard against any attempt at retarding, interrupting, protracting or stalling of the election proceedings. Care has to be taken to see that there is no attempt to utilise the Court's indulgence by filing a petition outwardly innocuous but essentially a subterfuge or pretext for achieving an ulterior or hidden end. Needless to say that in the very nature of the things the Court would act with reluctance and shall not act except on a clear and strong case for its intervention having been made out by raising the pleas with particulars and precision and supporting the same by necessary material."

51. In ***Manda Jagannath Vs. KS Rathnam*** reported in ***AIR 2004 SC 3600*** the Apex Court having been noticed the ban imposed under Article 329 (b) of the Constitution of India, has held that there being a specific provision against the challenge of election except by a election petition presented to such authority, in such a manner as may be provided for in a law made by the appropriate legislature, the High Court should not interfere with the matter in exercise of its writ jurisdiction.

52. The Apex Court further held that there are special situations where the writ jurisdiction could be exercised, but such situation means error having the affect of interfering in the free flow of scheduled election or hinder in the progress of the election, which is of paramount consideration. If by an erroneous order, conduct of the elections is not hindered, then Courts, under Article 226 of the Constitution of India should not interfere with the order of the returning officers, the remedy for which lies in an election petition only.

53. Even, in the matter of Bar Council Election in the case of ***KK Srivastav V. BK Jain*** reported in ***AIR 1977 SC***

1703, the Apex Court held that where there is a proper or equally efficacious remedy, the court should keep its hands off. This is more particularly so where the dispute relates to an election. Still more so, where there is a statutory prescribed remedy, which reads in to mandatory terms.

54. I may make some references to some of the discussions, His Lordship (SJ Mukhopadhyay, J.) has made in ***All India Anna Dravida Munnetra Kazagham*** (supra) where some circumstances were highlighted whether the jurisdiction of this Court under Article 226 were invoked:

"60. In the case of **A. Swamickan Vs K. Venkatachalam** reported in MANU/TN /0111/1987 : AIR 1987 Mad 60, a Bench of this Court noticed the provision of Article 193 (3) of the Constitution of India that unless a person is an elector for any assembly constituency, he cannot stand for an election to fill a seat in the legislative assembly of a State. In the said case, while the Court held that the respondent has no basic qualification, in exercise of jurisdiction under Article 226, gave a Declaration that the first respondent in the said case was not qualified. The matter, thereafter, was taken to Supreme Court in **K. Venkatachalam Vs A. Swamickan** reported in MANU/SC/0298/1999: [1999] 2 SCR 857. The Supreme Court held that Article 329 (b) which bar interference of the Court in electoral matters does not come into play when the case falls under Articles 191 and 193, which provides for disqualification of membership and penalty for sitting and voting when disqualified, and High Court could exercise jurisdiction under Article 226 and declare that the election was illegal inasmuch as the elector did not possess the basic constitutional and statutory qualification.

61. One 'Surinder Kaur' preferred a writ petition under Article 226 before the Punjab and Haryana High Court reported in MANU/PH/0045/1994, where she claimed that she was the Sarpanch for fifteen years of the Gram Panchayat, Village Dayalgarh, District Gurdaspur. She had obtained all the no objection certificates and other certificates on 15.1.93. On 17.1.93 she went at 12.00 noon to submit her nomination papers, but her husband was wrongfully detained by police and the 7th respondent in the case, and one Tara Singh had forcibly snatched the

nomination papers and torn them off. In spite of her complaint to the police, they did not pay any heed to her protest nor acted on her complaint. So, she complained at about 4.30 p.m. to the Sub-Divisional Magistrate present in the gypsy vehicle. There was an entry in the log book, but no action having been taken, since election was to take place on 18.1.93, she approached the High Court and filed a writ petition. The High Court granted stay at 2.00 p.m., which was communicated telegraphically at 3.00 p.m. on the same day, but the poll was concluded and closed at 4.00 p.m. in spite of stay order passed by the Court. Later on, the High Court dismissed the writ petition. Thereafter, the matter was taken up to Supreme Court in *Surinder Kaur Vs State of Punjab* reported in MANU/SC/0380/ 1996 : [1996] 2 SCR 1040. The Supreme Court having noticed that there was a stay granted by the High Court at 2.00 p.m. and the respondent had knowledge of the same, held that the Returning Officer should have stayed his hand back and awaited the decision of the High Court. It was observed that though the petitioner could have filed an election petition, but in view of the fact that in spite of stay order passed by High Court election was conducted and that being a case of unlawful prevention of appellant from contesting the election, the election of the 7th respondent as Sarpanch was set aside with a direction to hold repoll. That was a case wherein court's interim order having been flouted, the Supreme Court exercised its power and allowed the appeal.

62. In another case of *Jayarajbhai Jayantibhai Patel Vs Anilbhai Jayantibhai Patel & Ors.* reported in 2006 AIR SCW 4670, the Supreme Court discussed the scope of judicial review under Article 226 in the matter of election of President of a municipality. Having noticed that two councillors of the municipality were detained by police few minutes before the election meeting, and in spite of the fact being brought to the notice of the Presiding Officer, the Presiding Officer decided to continue with the election, the Supreme Court held that in facts and circumstances, the decision of the Presiding Officer was perverse and irrational warranting interference under Article 226.

63. In the case of *B.R.Kapur Vs State of T.N.* reported in AIR 2001 SC 3435, the Supreme Court having noticed the appointment of a non-legislator as Chief Minister for a period of six consecutive months under Article 164(4); there is prescribed qualification for membership of a legislator under Article 173 and disqualification contained under Article 191, held that a person convicted for criminal offence and sentenced to imprisonment for a period of not less than two years is disqualified under Section 8(3) of the Representation of People Act and thereby held that such a person cannot be sworn in and cannot continue to function as the Chief Minister. Therein, the constitutional provisions

and bar to interference by Courts under Article 329 was noticed and discussed and the Supreme Court held that the authority to appoint could be challenged in quo warranto proceeding and could be quashed by the court.

64. From the aforesaid fact, it would be evident that where the election is to be called in question and which may have the effect of interrupting, obstructing or protracting the election proceeding in any manner, as per the Supreme Court decision, invoking of judicial remedy has to be postponed till after the completion of the election. On the other hand, if any decision sought and rendered will not amount to calling in question an election and if it subserves the progress of the election and facilitates completion of the election, anything done towards completing or in furtherance of election proceeding is permissible as it cannot be described as questioning the election. Action taken or order issued by the Election Commission are open to judicial review such as on a case of mala fide or arbitrary exercise of power being made out or statutory body being shown to have acted in breach of law. The Supreme Court further observed that the Court must be very circumspect and act with caution while entertaining any dispute if not hit by the bar under Article 329 (b), but brought to it during the pendency of the election proceeding."

55. I may gainfully refer the case of **AR Antulay Vs. Ramdas Srinivas Nayak & Ors.**, reported in **MANU/SC/0082/1984** wherein the Apex Court has held that where a statute requires to do a certain thing in a certain way, the thing must be done in that way or not at all. Other methods of performance are necessarily forbidden.

56. In the case in hand, it is only alleged by the petitioner that the removal of the returning officer in 1-Tripura West Parliamentary Constituency and suspension of some presiding officers amply prove that the election in some of the polling stations are vitiated as identified by the petitioner. There is no allegation that the Election Commission-respondent No.1 acted arbitrarily or with mala

fide intention. To allege mala fide, sufficient materials must be produced before the court by the person who alleges mala fide. Based on vague and unfounded facts and on the premise of assumptions and presumptions, according to me, it would not be prudent for the court to accept the plea of mala fide against acts and commissions of executives, here, the Election Commission.

57. Their Lordships in **Ashok Kumar's** case have not stopped after expressing their views as summarized above. They have further proceeded to say in their valued expressions at para 33 which is reproduced as under:

"33. These conclusions, however, should not be construed as a summary of our judgment. These have to be read along with the earlier part of our judgment wherein the conclusions have been elaborately stated with reasons."

58. Again, in the present case, the action of the respondent-Election Commission cannot be said to be suffering from arbitrariness for the reason that after taking stock of the material facts, the Commission had ordered re-poll at 168 polling stations. The petitioner prayed for re-poll in 846 polling stations. But, I am at a loss to understand on what basis the election commission would order re-poll at other polling stations. Even before this Court, the petitioner has utterly failed to bring in any material facts so that this Court can justify itself that the election commission had any lapse or has taken any arbitrary decision in conducting the election.

59. In furtherance thereof, in the case of **Ashok Kumar** (supra) the court is very categorical to its conclusion that writ court can exercise its discretionary jurisdiction to subserve the smooth progress of election and to facilitate the completion of the election process.

60. In the case in hand, the petitioner prayed for countermanding the election, which, in no way can be said to sub-serve the smooth progress of election to facilitate the completion of the election.

61. In para 26 of the writ petition, the petitioner has categorically stated that this is not a petition for any election dispute but for coercing the Election Commission of India to perform the legal obligation which they are failing to do.

62. As I have observed earlier that there is no concrete evidence or material facts to come to any conclusion that the Election Commission-respondents had failed to discharge their legal obligations under the constitutional framework and under the Representation of Peoples Act, 1951 the allegations made by the petitioner are wholly vague and do not call for any intervention with the conduct of elections by the respondent-Election Commission.

63. In my opinion, if the Election Commission had failed in performing its legal obligation, in that event, the remedy lies in the filing of an appropriate election petition before the appropriate forum where there is a scope to lead

evidence to identify the area/s where the Election Commission had failed in discharging of its obligations.

64. The learned senior counsel, though did not refer some of the important features their lordships had observed in **Ashok Kumar's case** (supra), but I had the opportunity to take note of para 30 where their Lordships had re-stated the law in the manner as follows:

"30. To what extent Article 329(b) has an overriding effect on Article 226 of the Constitution. The two Constitution Benches have held that Representation of the People Act, 1951 provides for only one remedy; that remedy being by an election petition to be presented after the election is over and there is no remedy provided at any intermediate stage. The non obstante clause with which Article 329 opens, pushes out Article 226 where the dispute takes the form of calling in question an election (see para 25 of Mohinder Singh Gill's case). The provisions of the Constitution and the Act read together do not totally exclude the right of a citizen to approach the Court so as to have the wrong done remedied by invoking the judicial forum; nevertheless the lesson is that the election rights and remedies are statutory, ignore the trifles even if there are irregularities or illegalities, and knock the doors of the Courts when the election proceedings in question are over. Two-pronged attack on anything done during the election proceedings is to be avoided - one during the course of the proceedings and the other at its termination, for such two-pronged attack, if allowed, would unduly protract or obstruct the functioning of democracy.

31. The founding fathers of the Constitution have consciously employed use of the words 'no election shall be called in question' in the body of Section 329(b) and these words provide the determinative test for attracting applicability of Article 329(b). If the petition presented to the Court 'calls in question an election' the bar of Article 329(b) is attracted. Else it is not."

65. A three-Judge bench of the Supreme Court (Dipak Misra, CJI, A.M. Khanwilkar and Dr. DY Chandrachud, JJ) while deciding the election dispute in **West Bengal State**

Election Commission and Others Vs. Communist Party of India (Marxist) and Others, AIR 2018 SC 3964 at para 27 has observed thus:

"27. There is merit in the submission that the discipline which is mandated by the provisions of the Constitution and enforced by the enabling state law on the subject must be maintained. Any dispute in regard to the validity of the election has to be espoused by adopting a remedy which is known to law namely through an election petition. It is at the trial of an election petition that factual disputes can be resolved on the basis of evidence. This principle has been consistently adhered to in decisions of this Court. In *Boddula Krishnaiah* (AIR 1996 SC 1595) (supra), a three Judge bench, adverted to the decisions of the Constitution Bench in *NP Ponnuswami v. Returning Officer, Namakkal Constituency* and in *Lakshmi Charan Sen v. AKM Hassan Uzzaman*. After referring to *Ponnuswamy*, it was observed:

"In *Ponnuswamy v. Returning Officer, Namakkal Constituency* a Constitution Bench of this Court had held that having regard to the important functions which the legislatures have to perform in democratic countries, it has always been recognised to be a matter of first importance that elections should be concluded as early as possible according to time schedule and all controversial matters and all disputes arising out of elections should be postponed till after the elections are over so that the election proceedings may not be unduly retarded or protracted. In conformity with the principle, the scheme of the election law is that no significance should be attached to anything which does not affect the 'election'; and if any irregularities are committed, while it is in progress and they belong to the category or class which under the law by which elections are governed, would have the effect of vitiating the 'election'; and enable the person affect to call it in question, they should be brought up before a special tribunal by means of an election petition and not be made the subject of a dispute before any court while the election is in progress."

The binding principle must be followed."

66. Thus, from a bare reference to the aforesaid authorities, there cannot be any dispute that the conduct of elections is in the hands of the Election Commission, which has the power of superintendence, direction and control of

elections, vested in it as per Article 324 of the Constitution of India. If the Election Commission is of the opinion that having regard to the disturbed conditions or instances of large number of booth capturing at different polling stations, free and fair election was not held, he can countermand the election of the entire constituency or part thereof.

67. Therefore, no court, according to me, should direct such authority to countermand the election of a particular constituency and to postpone the declaration of result. But it cannot be ignored that in appropriate cases, to ensure constitutional functions assigned to such authority, appropriate orders can be passed to carry out the very purpose of smooth progress and to facilitate the completion of the election process. A few instances on this aspect has already been discussed in the preceeding paragraphs.

68. In the instant case, facts stated in the writ petition and the arguments based on those facts do not fall within the category of those circumstances where the court should invoke its extra ordinary jurisdiction under Article 226 of the Constitution. Admittedly, the election commission after meticulous scrutiny of the reports gathered from various election officers had declared fresh poll in 168 polling stations and thereby discharged its statutory obligation.

69. In the case in hand, the petitioner has prayed for countermanding the election to 1-Tripura West Parliamentary Constituency in view of the large scale of rigging and booth

capturing and also for fresh poll in the said constituency. In my considered view, the challenge being made has the affect of interrupting, obstruction and protracting the election process. This Court in exercise of its power under Article 226 of the Constitution of India should restrain itself from such exercise.

70. In the facts and circumstances, having found the disputed facts, non-impleading of necessary parties (contesting candidates), and keeping in view the constitutional and statutory mandate, I do not have any hesitation to reject the claim of the petitioner. Accordingly, the instant writ petition is dismissed.

However, there shall be no order as to costs.

JUDGE

